

BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA

STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,

Petitioner,

vs.

DON LOMAN,
LPC, LICENSE NO. 4387

Respondent.

Complaint Nos. 2024-LPC-470
2024-LPC-471
2024-LPC-480



**ORDER OF REVOCATION OF
PROFESSIONAL COUNSELOR LICENSE**

This matter came on for hearing before the State Board of Behavioral Health Licensure ("the Board") on December 6, 2024, at Oklahoma Office of Attorney General, 313 N.E. 21st Street, Susan Loving – CR 1008, Oklahoma City, Oklahoma, pursuant to notice given as required by law and rules of the Board.

Liz Stevens, Assistant Attorney General, appeared on behalf of Petitioner. Respondent appeared in person pro se. Ms. Stevens for Petitioner and Respondent are hereinafter referred to as the Parties.

The Parties stipulated to Findings of Fact and Conclusions of Law in this matter. Pursuant to those stipulations, the Board makes the following findings of fact, conclusions of law and orders:

FINDINGS OF FACT

1. Petitioner is a state agency with jurisdictional authority to regulate Licensed Professional Counselors, pursuant to 59 O.S. §§ 1901, *et seq.*
2. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 4387, and was licensed on or about May 21, 2010.
3. In March of 2024, the Board received several Requests for Inquiry ("RFI") alleging Respondent engaged in a sexual dual relationship with a client. The Board assigned the RFIs to Attorney General Agent Tony Blasier for investigation.
4. Respondent admitted to engaging in a therapeutic relationship with someone whom he had a twenty-five-year long friendship.

5. Respondent admitted to receiving oral sex from a client on two occasions, as well as exchanging text messages that were sexual in nature with a client.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. § 1905(B)(4) of the Licensed Professional Counselors Act.
2. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged in unprofessional conduct as defined by the rules established by the Board, 59 O.S. § 1912(A)(4).
3. Any person determined by the Board to have violated any provision of the LPC Act or any Rule related to licensed professional counseling, may be subject to an administrative penalty, not to exceed \$10,000 for any related series of violations, pursuant to 50 O.S. § 1913.1 and OAC 86:10-29-14.
4. Respondent's admission of engaging in a therapeutic relationship with a friend shows that Respondent violated OAC 86:10-3-3(c), which provides that LPCs shall not knowingly enter into a dual relationship.
5. Respondent's admission of receiving oral sex from a client also shows that Respondent violated OAC 86:10-3-3(c), which provides that LPCs shall not knowingly enter into a dual relationship.
6. Respondent's admission of receiving oral sex from a client shows that Respondent violated OAC 86:10-3-3(d), which provides that LPCs shall not engage in sexual conduct with current clients.
7. The text messages exchanged between Respondent and a client show a violation of OAC 86:10-3-1, which provides that LPCs shall strive to maintain the highest standards of their profession and make every effort to ensure that their services are used appropriately.

ORDER

IT IS THEREFORE ORDERED by the State Board of Behavioral Health Licensure as follows:

1. The Professional Counselor license of Don Loman, license no. 4387 is hereby REVOKED and the Board assess a \$7,500.00 administrative penalty.

This Order is subject to review and approval by the Oklahoma Attorney General, pursuant to Executive Order 2023-13, and this Order shall become final upon completion of the review by the Oklahoma Attorney General unless disapproved, in which case this Order shall be null and void.

Dates this 10 day of December, 2024.

Dr. Kelly Collins, LPC, NCC, CCTP
Dr. Kelly Collins, Board Chair
State Board of Behavioral Health Licensure

Certificate of Service

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Don Loman

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Grant, Oklahoma 74738

Respondent



Eric Ashmore, Executive Director

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1. Article Addressed to:

Don Loman
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Grant, OK 74738



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